

2014 WL 536202 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Julian JIMINEZ, Justin Serrano and Jose Soto, Plaintiffs,

v.

THE CITY OF NEW YORK, P.O. **Korey Noak** of NBBX, Shield #3050, P.O. Noak's Partner Under Docket #2013BX009541 s/h/a John/Jane Doe I, the Supervising Sgt. Under Docket #2013BX009541 s/h/a John/Jane Doe II and Other NYPD Police Officer s/h/a John/Jane Doe III-V, Defendants.

No. 0300491-2014.
January 28, 2014.

Summons

Papa, Depaola and Brounstein, Attorneys for Plaintiffs, 42-40 Bell Boulevard Suite 500, Bayside, New York 11361, (718) 281-4000.

TO THE ABOVE NAMED DEFENDANT:

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York January 17, 2014

PAPA, DEPAOLA AND BROUNSTEIN

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

VERIFIED COMPLAINT

JULIAN JIMINEZ, JUSTIN SERRANO and JOSE SOTO, by their attorneys, **PAPA, DEPAOLA AND BROUNSTEIN**, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **JULIAN JIMINEZ** was a resident of Bronx County, City and State of New York.

2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. On or about the 6th day of May, 2013 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to [Section 50-H of the General Municipal Law](#) and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants **P.O. KOREY NOAK OF NBBX, SHIELD #3050, P.O. NOAK*S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/*ANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE III-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

7. or about February 15,*2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JULIAN JIMINEZ**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.

9. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **JULIAN JIM INEZ** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into

custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2013BX009541. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “11” with full force and effect as though set forth at length herein.

13. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “13” as it set forth at length herein.

15. Defendants P.O. **KOREY NOAK** OF NBBX, SHIELD #3050, P.O. NOAK'S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE III-V were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

17. Plaintiff **JULIAN JIMINEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

19. On or about February 15, 2013, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JULIAN JIMINEZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing probable cause to do so.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

a. Freedom from assault to his person;

- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.

21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. At all times mentioned, Plaintiff JUSTIN SERRANO was a resident of Bronx County, City and State of New York.

24. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

35. On or about the 6th day of May, 2013 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

26. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

27. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to [Section 50-H of the General Municipal Law](#) and/or the Public Authorities Law and/or no such request was made within the applicable period.

28. Upon information and belief, at all times mentioned, Defendants **P.O. KOREY NOAK OF NBBX, SHIELD #3050, P.O. NOAK'S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE III-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

29. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JUSTIN SERRANO**, in an excessive manner about his person, causing

him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SEVENTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “29” with full force and effect as though set forth at length herein.

31. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff JUSTIN SERRANO in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “31” with full force and effect as though set forth at length herein.

33. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2013BX009542. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A NINTH CAUSE OF ACTION

34. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “33” with full force and effect as though set forth at length herein.

35. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A TENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

36. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “35” as it set forth at length herein.

37. Defendants **P.O. KOREY NOAK OF NBBX, SHIELD #3050, P.O. NOAK'S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE I-V** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

38. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

39. Plaintiff **JUSTIN SERRANO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

40. The Defendant *CITY OF NEW YORK* is a municipality duly incorporated under the laws of the State of New York.

41. On or about February 15, 2013, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JUSTIN SERRANO**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing probable cause to do so.

42. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.

43. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

44. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

45. At all times mentioned, Plaintiff JOSE SOTO was a resident of Bronx County, City and State of New York.

46. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

37. On or about the 6th day of May, 2013 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

48. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

49. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to [Section 50-H of the General Municipal Law](#) and/or the Public Authorities Law and/or no such request was made within the applicable period.

50. Upon information and belief, at all times mentioned, Defendants **P.O. KOREY NOAK OF NBBX, SHIELD #3050, P.O. NOAK'S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE III-V**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

51. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JOSE SOTO**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A TWELFTH CAUSE OF ACTION

52. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "51" with full force and effect as though set forth at length herein.

53. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **JOSE SOTO** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

54. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

55. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2013BX009540. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

56. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “55” with full force and effect as though set forth at length herein.

57. On or about February 15, 2013, at approximately 6:00 A.M. in the vicinity of the inside of 1029 Freeman Street, Apt. 1M, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately two (2) days or approximately thirty-one (31) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement

AS AND FOR A FIFTEENTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

58. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “57” as it set forth at length herein.

59. Defendants **P.O. KOREY NOAK OF NBBX, SHIELD #3050, P.O. NOAK'S PARTNER UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE I, THE SUPERVISING SGT. UNDER DOCKET #2013BX009541 S/H/A JOHN/JANE DOE II AND OTHER NYPD POLICE OFFICER S/H/A JOHN/JANE DOE III-V** were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

60. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

61. Plaintiff **JOSE SOTO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to [42 United States Code, Section 1983](#) and [42 United States Code, Section 1988](#).

62. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

63. On or about February 15, 2013, the Defendants, armed police, while effectuating the seizure of the Plaintiff **JOSE SOTO**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing probable cause to do so.

64. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;

- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.

65. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

66. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York January 17, 2014

Yours, etc.

PAPA, DEPAOLA AND BROUNSTEIN

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-4000

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